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Groups oppose California bill targeting chemicals

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The Consumer Brands Association, the American Beverage Association, the American Bakers Association and The North American Millers Association are among a number of groups banding together in opposition of Assembly Bill 418 (Gabriel), legislation introduced in California to ban five food additives.

Proposed in February by Assembly member Jesse Gabriel, the law would prohibit the manufacture, sale or distribution of any food product in California containing red dye No. 3, titanium dioxide, potassium bromate, brominated vegetable oil, or propyl paraben.

In a letter to Alex Lee, who chairs the California Assemblys Environmental Safety and Toxic Materials Committee, the group said food additives are subject to comprehensive federal safety oversight.

Food safety is a paramount concern to us and our members; however, this measure usurps the comprehensive food safety and approval system for these five additives and predetermines ongoing evaluations, the group opposing the measure said.

Red dye No. 3 is used in certain baked foods, ready-to-eat breakfast cereals, beverages and candies. Titanium dioxide is used as a food additive to give products whiteness. Potassium bromate is used as a flour improver and dough strengthener. Brominated vegetable oil is used in small quantities as an emulsifier for citrus flavored soft drinks. Propyl paraben is used as an antimicrobial preservative in foods.

Each of these chemicals is currently banned in the European Union (EU) due to scientific studies that have demonstrated significant public health harms, including increased risk of cancer, behavioral issues in children, harm to the reproductive system, and damage to the immune system, Mr. Gabriel said.

The groups opposing the measure said California already has a process by which unsafe chemicals are removed from the market or warning labels are mandated.

California has several laws that require removing chemicals from foods, attaching warning labels, and checking alternatives if those food additives are unsafe or expose consumers to allergies, the associations said. All five of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe. The food safety process is active and should be allowed to continue the appropriate review of these five and all additives. Several substances this bill proposes to ban are subject to petitions to these government entities initiated by many organizations supporting this measure.

In the event of such petitions, scientific regulators work through processes to establish recognized safe thresholds, the groups said. Only then, when appropriate and supported by peer-reviewed scientific evaluations, are additional labels or removal from the market pursued.

Additionally, our comprehensive system requires ingredient labeling allowing consumers to make informed decisions, the groups said.

Other groups signing the bill included the International Association of Color Manufacturers, the American Chemistry Council, the National Confectioners Association, the California Manufacturers and Technology Association, the California Grocers Association, the California Chamber of Commerce, the California League of Food Producers, the California Retailers Association and the Chemical Industry Council of California.

This coalition supports initiatives to promote food safety and actively engages in the regulatory processes to ensure a safe and wholesome food supply, the groups said. As a result, the federal government and the state of California have developed one of the worlds most robust and protective systems for food safety. In short, we encourage the legislature to allow that system to do this critical work. Therefore, this coalition respectfully opposes AB 418 and urges the committee to hold the bill.

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